



Department of
Primary Industries and
Regional Development

Our reference: FOI2025-049
Enquiries: foi@dpird.wa.gov.au

Ms Han u Liu

Sent via email: helloluna520@gmail.com

Date: 7 November 2025

Dear Hanyu Liu

INTERNAL REVIEW NOTICE OF DECISION

I refer to your internal review application lodged under the *Freedom of Information Act 1992* (WA) with the Department of Primary Industries and Regional Development (DPIRD) on 14 October 2025, in relation to FOI application FOI2025-049.

As A/Privacy and Information Access Lead, I have been asked to undertake an independent internal review of the decision of Ms Courtney Taylor, A/Privacy and Information Access Coordinator dated 13 October 2025.

You have agreed to extend the due date for the conduct of the internal review to 7 November 2025.

The enclosed Internal Review Notice of Decision outlines DPIRD's decision with respect to your application for an internal review.

If you are not satisfied with DPIRD's decision in this review, you have a right to apply for an external review in accordance with the process outlined at the end of this notice.

Should you have any queries in relation to this matter please do not hesitate to contact me via foi@dpird.wa.gov.au.

Yours sincerely

Ms Nicole Xanthis
A/Privacy and Information Access Lead
Information Services – Corporate Services
Department of Primary Industries and Regional Development

Attachment: Internal Review Notice of Decision

FREEDOM OF INFORMATION ACT 1992 (WA) (FOI Act)
INTERNAL REVIEW NOTICE OF DECISION
UNDER SECTION 43

APPLICANT Ms Hanyu Liu

DECISION MAKER Ms Nicole Xanthis
 A/Privacy and Information Access Lead
 Information Services – Corporate Services
 Department of Primary Industries and Regional Development (DPIRD)

DELEGATION I have been appointed by the Director General as a decision maker for DPIRD pursuant to s.100 of the FOI Act.

DATE 7 November 2025

DECISION For the reasons set out below, I have decided to confirm the original decision made by Ms Courtney Taylor, A/Privacy and Information Access Coordinator on 13 October 2025, that all reasonable steps have been taken by DPIRD to find documents falling within the scope of your application and such documents do not exist within DPIRD.¹

BACKGROUND

1. On 22 August 2025, DPIRD received your initial application under the FOI Act (Ref FOI2025-049), requesting information regarding the accountability records for Designated Inspectors (DI's) in animal welfare enforcement in Western Australia. Specifically:
 - 1.1 *“Ministerial / Parliamentary briefings on the DI program*
 - 1.1.1 *“Documents sought: briefing notes (“ministerials”), submissions, reports, Estimates/Questions-on-Notice briefing packs, or formal correspondence submitted by DPIRD to any WA Minister, Parliamentary Secretary, or Parliamentary Committee concerning:*
 - 1.1.1.1 *“DI operational performance, inspection outputs/outcomes, record-keeping/data integrity, or identified regulatory/compliance issues.*
 - 1.1.2 *“If no such documents exist, please provide an explicit statement confirming that no formal briefing or report on the DI program’s operation or effectiveness has been provided to the Minister or Parliament since 1 Jan 2022.*
 - 1.2 *“Communications with external integrity agencies (OAG / Ombudsman)*
 - 1.2.1 *“Documents sought: formal correspondence, memoranda, or meeting records between DPIRD and the Office of the Auditor General (OAG) or Ombudsman WA concerning:*
 - 1.2.1.1 *“the DI regulatory framework, record-keeping practices, or any identified data gaps/deficiencies.*
 - 1.2.2 *“If no such communications exist, please state explicitly that DPIRD has not sought review, advice, or guidance from OAG or Ombudsman in relation to the DI program since 1 Jan 2022.*
 - 1.3 *“Internal risk / compliance assessments concerning DI statutory duties*
 - 1.3.1 *“Documents sought: internal compliance reports, risk assessments, internal audit reports, risk-register entries, or management briefings produced by DPIRD that assess legal, financial or reputational risks arising*

¹ Section 26(1)(b)(ii) of the Freedom of Information Act 1992 (FOI Act).

from potential or actual failures to meet statutory animal-welfare obligations via the DI program.

- 1.3.2 *"If no such records exist, please state explicitly that DPIRD holds no formal risk, audit or compliance records assessing its exposure arising from the DI program since 1 Jan 2022."*

- 1.4 The timeframe of your request being 1 January 2022 to 22 August 2025 (date application was received) (**Application**).

2. You indicated on your FOI Application form that you consent to all personal information of third parties being deleted from the requested documents.
3. You were provided a Notice of Decision on 13 October 2025, stating that all reasonable steps had been taken by DPIRD to find documents falling within the scope of your Application and such documents do not exist within DPIRD² (**Original Decision**).

SCOPE OF INTERNAL REVIEW REQUEST

4. On 14 October 2025, DPIRD received your request for an internal review of the Original Decision. You sought review of the decision on the following 4 grounds:

4.1 Ground 1 – Interpretation of Scope of Access Application

You state that the scope appears to have limited the search to documents that explicitly and exclusively refer to Designated Inspectors (DI's) specifically relating to DI's. You have advised that based on this interpretation:

"... the governance, performance, risks, and oversight of the DI program are inherently encompassed within the broader governance of the Animal Welfare Inspectorate. Documents concerning the inspectorate's operations, briefings to Ministers, or communications with integrity agencies therefore fall within the ordinary meaning of the request. To exclude such documents is an error of interpretation that renders the search incomplete."

4.2 Ground 2 - Inadequate Searches

You state that based on the interpretation of the scope as outlined at paragraph [4.1] of this decision, a reasonable search for ministerial or inter-agency accountability records would not have been conducted based on the search terms detailed in the decision. You state that:

"Documents relevant to the inspectorate's performance or oversight are likely to exist under broader descriptors such as:

- 4.2.1 *"animal welfare inspectorate"*
- 4.2.2 *"animal welfare enforcement"*
- 4.2.3 *"compliance performance report"*
- 4.2.4 *"ministerial briefing animal welfare"*
- 4.2.5 *"inspectorate risk assessment"*

The absence of such search terms, and the lack of evidence that key custodians (e.g., Ministerial Liaison, Animal Welfare Policy, Compliance and Inspection branches) were consulted, indicates that not all reasonable steps were taken as required by section 26(1)(b)(ii) and the OIC Reasonable Search Guidelines."

² Section 26(1)(b)(ii) of the FOI Act.

4.3 Ground 3 – Implications of the Decision are contrary to “Good Administration”

You state *“that the decision implies that since 1 January 2022, DPIRD has:*

- 4.3.1 *“issued no ministerial or parliamentary briefings concerning the inspectorate’s performance;*
- 4.3.2 *“held no correspondence or reporting with the OAG or Ombudsman regarding enforcement data gaps or risks; and*
- 4.3.3 *“recorded no formal risk assessments for this statutory function.”*

Such a total absence of accountability documentation would represent a material governance anomaly. A more plausible explanation is that relevant records exist within broader functional categories (e.g., “General Inspectorate” or “Animal Welfare Compliance”) but were not captured due to the narrow search scope.”

4.4 Ground 4 – Recordkeeping Obligations

You state “under section 16(2)(b) of the State Records Act 2000 (WA), DPIRD is required to “properly and adequately record the performance of the organisation’s functions. If no records exist for ministerial briefings or oversight reporting on the inspectorate, this raises questions about compliance with DPIRD’s approved Recordkeeping Plan. I therefore request that the reviewer confirm whether the RKP includes provisions for ministerial briefings, inspectorate operations, or risk management records, and whether these systems were searched.”

5. You requested *“a review of the decision of 13 October 2025, and asked for the decision to be set aside, an independent review be undertaken using a broader and function-based search and the scope of the Application to explicitly include documents concerning the Animal Welfare Inspectorate as a whole, as this necessarily includes the DI function”.*
6. Under s. 43(2) of the FOI Act, an internal review decision is due 15 calendar days after the request was lodged, unless otherwise agreed between the applicant and the agency.
7. On 24 October 2025, DPIRD requested an extension of time to finalise your internal review, and you provided consent for the extension thereby making the revised due date, Friday 7 November 2025.

CONSIDERATIONS

8. The purpose of this review is to confirm, vary or reverse the Original Decision.
9. An internal review is to be dealt with as if it were an access application under the provisions of Divisions 2, 3 and 4 of the FOI Act and is also aimed to:
 - 9.1 Ensure that transparency and accountability have been met in handling the application.
 - 9.2 Review the Original Decision and confirm whether all reasonable processes were undertaken.
 - 9.3 Address the 4 grounds raised in your internal review request.
10. DI’s is taken to refer to the Designated Inspector as defined in section 5 and 35A of the *Animal Welfare Act 2002* (AW Act).

11. I have reviewed your Application form dated 22 August 2025 and note you have stated in your Application that the subject matter relates to “*Accountability records for Designated Inspectors Program*”.
12. You have emphasised in the details of the documents being requested that you are seeking documents relating to DI’s outlined at [1.1 to 1.3] of the Original Decision:
13. I am of the view that the scope of your request is specific to DI’s only and not documents relating to General Inspectors or all DPIRD staff.
14. In your internal review request, you state that as advised in the Original Decision, that under the AW Act, DI’s are a subclass of General Inspectors appointed by the Director General in accordance with section 35A of that Act. You argue that DI’s are encompassed within the broader “*Animal Welfare Inspectorate*” and conclude that documents relating to the broader category of General Inspectors or Animal Welfare Inspectors should be encompassed within your Application. I am of the view that your request was specific to DI’s only and not documents relating to General Inspectors or all DPIRD staff, I do not agree with this conclusion. In general terms, it follows that where a request has been made specifically for documents relating to a subset of a broader category, the scope of the request does not extend to the entire category but is confined to that subset.
15. In your internal review request, you request all General Inspector level documents that refer to or govern DI’s. As I am of the view that the scope of your Application was limited to documents relating to DI’s, and not to those concerning General Inspectors or all DPIRD staff, I consider that this material falls outside the scope of your Application. Accordingly, it is reasonable that it was not taken into account in the Original Decision.
16. As advised at paragraph [8] the purpose of this internal review is to confirm, vary or reverse the Original Decision. As such, I am of the view that the Original Decision did not misconstrue the scope of your Application.

Searches for Documents falling within the Scope of your Access Application

17. I am of the view that Original Decision did not misconstrue the scope of your Application. On this basis, I am of the opinion that further searches are not required to be undertaken using a “*broader and function-based search*” as the scope of the Application is specific to request documents relating to DI’s and not documents relating to General Inspectors or all DPIRD staff.
18. In considering if the searches conducted to locate documents falling within the scope of your Application were adequate and reasonable, the former Information Commissioner has said that ‘*the adequacy of an agency’s efforts to locate documents are to be judged by having regard to what is reasonable in the circumstances.*’³
19. In light of this position and considering the points raised in your internal review request, I have reviewed the FOI file to assess if reasonable searches for documents falling within the scope of your Application were conducted by:
 - 19.1 Operations and Compliance Directorate
 - 19.2 Animal Welfare Policy Branch
 - 19.3 Executive and Ministerial Services Branch (business areas)

³ Re *Leighton and Shire of Kalamunda* [2008] WAICmr 52

20. I have viewed the signed search forms completed by the business areas to confirm that the searches were conducted on Objective Nexus, which is DPIRD's electronic document records management system. It is an information governance solution designed for effective records management, process automation, and compliance, particularly for government and regulated organisations.
21. I also confirm staff in those business areas were instructed to search their own drives and emails for documents that were specific to DI's. The business areas used the following keywords to locate documents falling within the scope of your Application:
 - 21.1 "designated inspection risk"
 - 21.2 "designated inspector"
 - 22.3 "designated Inspectors"
22. An approximate accumulated total time of 13.75 hours was spent conducting searches by the business areas for documents potentially falling within the scope of your Application.
23. Whilst some documents were identified during the search process, upon review they were found not to fall within the scope of the Application.
24. Additionally, I have considered if there are other areas in DPIRD which could reasonably be expected to hold or know of documents you have requested in your Application. I am satisfied that no further business areas were identified as expecting to hold documents.

Section 26 – Documents that do not exist

25. Section 26 of the FOI Act deals with an agency's obligations in circumstances when it is unable to locate documents sought by an applicant or when those documents do not exist.

Section 26 provides:

- (1) *The agency may advise the applicant, by written notice, that it is not possible to give access to a document if –*
 - (a) *all reasonable steps have been taken to find the document; and*
 - (b) *the agency is satisfied that the document –*
 - (i) *is in the agency's possession but cannot be found; or*
 - (ii) *does not exist.*
- (2) *For the purposes of this Act the sending of a notice under subsection (1) in relation to a document is to be regarded as a decision to refuse access to the document, and on a review or appeal under Part 4 the agency may be required to conduct further searches for the document.*

26. The following questions must be answered before an agency can rely on section 26 to refuse access to documents. Firstly, whether there are reasonable grounds to believe that the requested documents exist or should exist, and is, or should be, held by the agency. Secondly, where that question is answered in the affirmative, whether the agency has taken all reasonable steps to locate the document.
27. In response to the first question, I considered information provided from the business areas advising that DPIRD does not record outcome data in respect to whether an inspection required the powers of a General Inspector or a DI, that DPIRD does not have a regulatory framework, risk assessments or internal compliance reports that is specific to DI's which is separate to that for General Inspectors within DPIRD. I am satisfied that it is reasonable to conclude documents in the scope of your Application do not exist.

28. In response to the second question, I consider that reasonable searches have been undertaken to locate the requested documents falling within the scope of your Application. Whilst documents relating to the topic of DI's exist within DPIRD and were identified as a result of the searches described above, no documents were identified that met the scope of your Application.
29. I am satisfied DPIRD has taken all reasonable steps to locate documents, and they do not exist.
30. The Original Decision provided the business areas that conducted searches for documents, advised the locations that were searched and detailed keywords that were used to identify documents relating to the scope of your Application.
31. Section 30 of the FOI Act requires for a Notice of Decision to be provided to an applicant under the FOI Act. In reviewing the decision provided to you on 13 October 2025, I am of the opinion that the requirements of section 30 have been met.
32. As such, I am of the view that the Original Decision has provided sufficient detail to establish that all reasonable steps have been taken to find documents falling within the scope of your Application.

INTERNAL REVIEW DECISION

33. The Original Decision provided that the following questions must be answered before an agency can rely on section 26 to refuse access to documents. Firstly, whether there are reasonable grounds to believe that the requested documents exist or should exist, and is, or should be, held by the agency. Secondly, where that question is answered in the affirmative, whether the agency has taken all reasonable steps to locate the document.
34. In response in conducting this review, I am satisfied that the documents do not exist and that DPIRD has taken all reasonable steps to locate documents.
35. In addressing your 4 grounds outlined at paragraphs [4.1 to 4.4], I do not support your conclusions. DPIRD has made a decision based of the scope of your Application and searches have been adequately conducted and found that no documents exist.
36. In light of the above information, I have decided to confirm the Original Decision by Ms Courtney Taylor A/Privacy and Information Access Coordinator made on 13 October 2025, to refuse access to the requested documents, pursuant to section 26 of the FOI Act, as the documents do not exist.

RIGHT OF REVIEW

37. If you are not satisfied with this decision, you have a right to request an external review of my decision with the Office of the Information Commissioner. A complaint must be lodged with the Information Commissioner within 60 calendar days after being given this written notice, and must:
 - 37.1 be in writing;
 - 37.2 give particulars of the decision to which the complaint relates;
 - 37.3 include a copy of this internal review notice of decision; and
 - 37.4 give an address in Australia to which notices under the FOI Act can be sent.
38. There is no lodgement fee for an application for external review nor are there any charges associated with such a request.

39. You can lodge an external review request by post, addressed to

Office of the Information Commissioner
Albert Facey House
469 Wellington Street
PERTH WA 6000

40. Please contact the Office of the Information Commissioner on (08) 6551 7888 or by email at info@oic.wa.gov.au should you have any queries or require further information concerning your review rights.

Feedback on our service

If you wish to provide any comments or feedback on the service provided by DPIRD please email foi@dpird.wa.gov.au.

Yours sincerely



Ms Nicole Xanthis
A/Privacy and Information Access Lead
Corporate Services
Department of Primary Industries and Regional Development

Attachment: Section 26 of the FOI Act